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These are similar special motions to strike brought in two similar cases. Plaintiff in these cases is a tenant who sues the former landlord and property manager. There is also a UD case in which the landlord is attempting to evict plaintiff. In the instant case, plaintiff claims a number of torts. The underlying alleged facts are that on November 4, 2025, defendant wrote and delivered a letter asking to talk to plaintiff concerning various complaints that defendant had received. This was a first step toward investigating issues that could lead to a Measure RR letter and potential eviction. The eventual Measure RR letter was written on official letterhead and was addressed to "Semen." Measure RR is a part of the Santa Monica rent control structure. It extends protection against eviction in a number of ways. It requires landlords to give tenants written notice to correct a lease violation before starting eviction proceedings, and also limits the landlord's ability to evict tenants who are terminally ill or who have lived in the unit for at least five years or who are disabled or who are at least 62. The notice here accused plaintiff of abusing, harassing, and threatening others, which would be cause for eviction if true. It also accused plaintiff of being a nuisance. On December 5, defendants sent plaintiff a cure or quit notice. The notice was allegedly verified by management. Plaintiff also claims that defendant disseminated the letter to the Housing Authority and to two individuals: Dominique Thurman and Jonathan Campbell. Plaintiff alleges that the foregoing conduct constituted defamation by discussing the alleged behaviors without plaintiff's permission and communicating the accusations to others. Plaintiff also claims that defendants did not respond to her requests for accommodation made by herself and her representative Jonathan Campbell to have meetings through Zoom or a similar method or to use Zoom to inspect the

premises rather than conduct a physical inspection. She also alleges that the foregoing conduct constituted intentional infliction of emotional distress. The third cause of action is for negligence, and again, it is based on the same set of facts. The fourth cause of action is for the public disclosure of private facts. It is based on the same allegations as set forth above—there is no additional detail. The fifth cause of action is for intrusion into private affairs, again by discussing the issues raised in the Measure RR notice and failing to accommodate plaintiff's requests. The sixth and final cause of action is for false light, and is again based on the same set of facts. The other case is similar, but it alleges sexual harassment. However, the supporting facts are the same. The court notes that at the last hearing, the court had mistakenly believed that the UD case had been adjudicated in defendants' favor. The court was in error on that, as plaintiff properly pointed out. Accordingly, any arguments relating to collateral estoppel, res judicata, or law of the case that might otherwise be leveled against plaintiff would not apply. But that was not the thrust of the court's prior tentative, and it does not change the outcome. Indeed, as explained below, the outcome of this motion would be the same even were the UD case finally adjudicated in plaintiff's favor (that is, plaintiff's favor here, not plaintiff's favor in the UD case).

A Special Motion to Strike (SMS) is a California response to what the Legislature concluded were a series of lawsuits designed to chill speech. The underlying problem was that a person would engage in free speech—such as picketing or the like—and would be met with a lawsuit claiming that the speech was tortious in some way. True, the defendant would ultimately prevail if the speech was in fact protected speech, but only after litigating the issue—potentially through summary judgment or trial. In the meantime, the defendant would be forced to run the litigation gauntlet and retain counsel. The effect, the Legislature concluded, was that people were afraid to engage in protected speech or activity due to this improper and heavy-handed mis-use of the legal process. The response was Code of Civil Procedure section 425.16—the Special Motion to Strike. (It is often referred to as an anti-SLAPP motion. The court prefers SMS.) This is a very powerful tool that is given to defendants who believe that they are being sued for engaging in this kind of constitutionally-protected conduct. It allows an early resolution of the case on the merits. The motion is a speaking motion, meaning that the court goes beyond the allegations in the complaint, and once brought, the motion freezes discovery. A plaintiff is generally not allowed to amend if the motion is successful, and the motion—win or lose—is appealable. A successful

defendant is entitled to recover attorneys' fees as a matter of right as well. The same is not true of a party successfully defeating the motion unless the motion was brought in a way that (essentially) violates CCP section 128.5.

The SMS sets forth a two step process to balance the desire to get a resolution early against the need to be sure that due process is maintained. The first step is to determine whether the suit really alleges a tort based on the exercise of a constitutionally protected right. After all, most torts have nothing to do with the Constitution. The burden on establishing this prong lies with the defense, and the court looks primarily to the complaint to answer the question. The court can look beyond the complaint, but generally, plaintiff is the master of the complaint and a plaintiff is entitled to plead around constitutionally protected conduct. (For example, in a case similar in some ways to this one, plaintiff mentioned a UD case in the complaint, but was careful only to sue the defendant for other things, like turning off the utilities, and expressly disclaimed any effort to impose liability on the defense for what the plaintiff claimed was a bad faith UD action.) Further, an allegation of constitutionally protected activity will not trigger the statute if it is only background. It has to be a part of the charging allegations—meaning it needs to form a part of the actual basis for the cause of action. If the defendant can meet the first prong, then the burden shifts to the plaintiff to defeat the motion under the second prong. The statute states that it is up to the plaintiff to show a reasonable probability of success. But those words are deceiving. Recall that this is the start of the case. The plaintiff has not had the benefit of discovery, and the point of the SMS is not to do away with the fact-finder's role. Rather, this prong has been interpreted as a test to see whether the case has "minimal merit," which is a standard akin to that needed to oppose successfully a motion for summary judgment. If the plaintiff can present evidence—not just allegations—that (if believed) would lead to a plaintiff's verdict, that is sufficient. The court can consider the evidence, but it is not to weigh the evidence. If there is a triable issue of fact, the motion fails.

The court turns to the first prong. The allegations there are that Leguizamon, who was employed by Community Corporation as a Property Supervisor for the relevant property, requested a call with plaintiff to discuss certain

complaints that had been received. He provided his contact information. He mistakenly began the letter to her with "Dear Semen." The defense has put in evidence that this was a mistake. He took the heading from a recent letter he had written to a tenant whose first name was "Semen" (pronounced Simon). Plaintiff did not call, so a formal Measure RR letter was sent to plaintiff. Under that measure, such a letter is required before eviction proceedings can begin. That ultimately led to an inspection of plaintiff's residence in December 2025, which ultimately led to a new Measure RR letter and then eviction proceedings. Therefore, the November letter was a predicate to the start of potential eviction procedures, which is constitutionally protected conduct. The same is true of the December cure or quit notice.

All of that conduct is protected. Measure RR is the predicate that leads to an unlawful detainer action. That is an action in court, and as such, it involves the right to petition government. Suing someone for taking a first step toward bringing a legal action is a suit that does involve a constitutionally protected right. While plaintiff does not allege that the UD action itself is the wrong, the things about which she does sue are necessary predicates to that action. (That is true even if the ultimate grounds for the UD action were different from those in the original Measure RR notice. The fact is that the original notice was a predicate to suit; the fact that the landlord ultimately brought the UD on different grounds after learning more information does not change the character of the claim.) That is sufficient, and the burden shifts. The court notes that while it is plaintiff's burden to present evidence, the defense here has raised the litigation privilege codified in Civil Code section 47(b). That statute makes conduct in litigation absolutely privileged as against tort claims (other than malicious prosecution). It is often called the "absolute" privilege, although pre-litigation conduct is not really absolutely privileged. Even so, it is very potent and does extend to core conduct necessary to pursue an eventual claim in court. Here, plaintiff has not presented evidence in opposition to the motion, so there is no evidence to support her claims at all. (She does ask the court

to take judicial notice of various state and local laws, which the court will do.) But even if there were, pretty much everything done was done in furtherance of the eventual or contemplated UD claim. The defamation assumes a false statement, but there is no evidence that any statement was false. (Further, to the extent that the statement was an allegation of complaints by others, if the defendant really received the complaints, the statements are true.)

The other causes of action are all derivative of the fact that defendant was starting to take steps that eventually led to plaintiff's eviction. Further, plaintiff has failed to show minimal merit or how her claims will survive the section 47 privilege. A famous example is the decision in *Malin v. Singer* (2013) 217 Cal.App.4th 1283.

There, attorney Singer sent a settlement demand letter to a potential defendant threatening that if defendant did not settle, Singer (on behalf of his client) would bring a lawsuit and seek a full accounting of defendant's books and records (suggesting that he would uncover misconduct that would become public in the litigation) and that the defendant had arranged for sexual liaisons between certain victims and older men.

The target of the litigation sued, claiming that Singer's letter constituted an attempted extortion—seeking to disclose embarrassing facts unless money was paid. Singer brought an SMS. The trial court denied the motion, finding that the letter could be so interpreted and thus was not protected conduct, or at least whether it was protected was a question of fact. The Court of Appeal reversed. It noted that because the letter dealt only with the threatened litigation, it was the start of the litigation process. Unlike a threat simply to disclose embarrassing facts unless money is paid (which could be extortion), this was a threat to file a lawsuit, and the facts in question were relevant to the lawsuit and would become public, therefore, should a suit be filed. Accordingly, even though the letter was not itself a court document, it was the first step toward a lawsuit, and thus was protected under the litigation privilege.

The court ordered that the suit be dismissed. So here.

The conduct of which plaintiff complains all involves actions that appear to be things necessary in order to bring an unlawful detainer case. And that is protected. Even if the UD case ultimately fails, it is the right to bring it that counts. (If the UD action fails, plaintiff here might have a malicious prosecution claim against the landlord, but that is not a question before this court.)

Plaintiff also contends that sending the letter to third

parties is defamation and thus is not protected. But this was not widely disseminated. Rather, the letter was allegedly sent to the

Housing Department and two individuals apparently not unrelated to the matter. Because the dissemination was in furtherance of the Measure RR process, there remains a privilege. And plaintiff has still not demonstrated that there was anything in the letter that was false or that put plaintiff in a false light.

The court has considered the various statutes to which plaintiff cites. But the bottom line remains that the defense is privileged to begin the process that might lead to eviction. That begins with an attempt to contact plaintiff, but it continues with reasonable investigation of the complaints, a Measure RR letter, a 3 day notice, and eventually a lawsuit. All of that is protected activity. Because there is no evidence from the defense that any of the statements of fact are even false, let alone defamatory, the motion has merit.

Because defendant has demonstrated that the lawsuits involve constitutionally protected conduct, and because plaintiff has presented no evidence suggesting that there is even a triable issue of fact on the merits, the motions succeed. Therefore, the Special Motions to Strike are GRANTED. The complaint is STRICKEN. Defendants will prepare a written order for the court's signature.

Finally, the court notes that plaintiff filed papers yesterday. They appeared for the first time today. They are unauthorized and they are STRICKEN. This is not the first time plaintiff has done this sort of thing. Basic fairness to the other side means that the papers have to be filed and served in a way that allows the other side to digest them before the hearing. And where the other side is entitled to a reply, then the papers must be filed in a way to allow a reply. And basic fairness to the court requires that papers be filed in a way that allows the court adequate time to review them and consider them. This sort of thing is not proper. If plaintiff needed more time, she should have said so at the last hearing or sought a

continuance to allow the filings. That
said, to the extent that it is a request that the court take judicial notice of
the law, the court will do so.